

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000002

Sa.Medina

Recorded On: 5/14/2026 10:05:40 AM

Number of Pages: 1

NF Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information**

|                 |             |
|-----------------|-------------|
| Document Number | 00000000002 |
| Receipt Number  | 1986576     |
| Fees            | \$24.00     |

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

**NOTICE OF SUBSTITUTE TRUSTEE SALE**

|                                                                                                                                                                                                            |                                                                                  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|
| <b>Deed of Trust Date:</b><br>11/14/2009                                                                                                                                                                   | <b>Grantor(s)/Mortgagor(s):</b><br>FERNANDO HERNANDEZ AND MICHELLE HERNANDEZ     |
| <b>Original Beneficiary/Mortgagee:</b><br>PATRIOT MORTGAGE CO.                                                                                                                                             | <b>Current Beneficiary/Mortgagee:</b><br>Wells Fargo Bank, N.A.                  |
| <b>Recorded in:</b><br><b>Volume:</b> N/A<br><b>Page:</b> N/A<br><b>Instrument No:</b> 20090087213                                                                                                         | <b>Property County:</b><br>EL PASO                                               |
| <b>Mortgage Servicer:</b><br>Wells Fargo Bank, N.A. is representing the Current Beneficiary/Mortgagee under a servicing agreement with the Current Beneficiary/Mortgagee.                                  | <b>Mortgage Servicer's Address:</b><br>1000 Blue Gentian Rd.,<br>Eagan, MN 55121 |
| <b>Date of Sale:</b> 8/4/2026                                                                                                                                                                              | <b>Earliest Time Sale Will Begin:</b> 10:00 AM                                   |
| <b>Place of Sale of Property:</b> The Coliseum - 4100 East Paisano Drive, El Paso, TX, 79905 OR IN THE AREA DESIGNATED BY THE COMMISSIONER'S COURT, PURSUANT TO SECTION 51.002 OF THE TEXAS PROPERTY CODE. |                                                                                  |

**Legal Description:** LEGAL DESCRIPTION ATTACHED AS EXHIBIT A

In accordance with TEX. PROP. CODE §51.0076 and the Deed of Trust referenced above, the undersigned as attorney for Mortgagee or Mortgage Servicer does hereby remove the original Trustee and all successor substitute trustees and appoints in their stead, Auction.com, LLC, Beverly Mitrisin or Charles Thomas Nations, Cole Patton, Myra Homayoun, Thuy Frazier, McCarthy & Holthus, LLP, as Substitute Trustee, who shall hereafter exercise all powers and duties set aside to the said original Trustee under there said Deed of Trust; and, further, does hereby request, authorize, and instruct said Substitute Trustee to conduct and direct the execution of remedies set aside to the beneficiary therein

The Substitute Trustee will sell the property by public auction to the highest bidder for cash at the place and date specified. The sale will begin at the earliest time stated above or within three (3) hours after that time.

The Property will be sold "AS IS," without any express or implied warranties, except as to warranties of title, and at the purchaser's own risk, pursuant to the terms of TEX. PROP. CODE §51.002 and §51.009. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

Substitute Trustee reserves the right to set further reasonable conditions for conducting the public auction. Any such further conditions shall be announced before bidding is opened for the first sale of the day held by Substitute Trustee.

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

**NOTICE PURSUANT TO TEX. PROP. CODE § 51.002(1): ASSERT AND PROTECT YOUR RIGHTS AS MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU OR YOUR SPOUSE ARE SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY.**

Dated: 5/12/2026

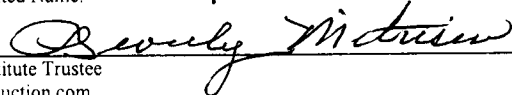


Thuy Frazier, Attorney  
McCarthy & Holthus, LLP  
1255 West 15th Street, Suite 1060  
Plano, TX 75075  
Attorneys for Wells Fargo Bank, N.A.

Dated: MAY 14, 2026

BEVERLY MITRISIN

Printed Name:



Substitute Trustee  
c/o Auction.com  
1255 West 15th Street, Suite 1060  
Plano, TX 75075  
<http://sales.mccarthyholthus.com/>

MII File Number: TX-25-123188-POS  
Loan Type: FHA

TX-25-123188-POS

EXHIBIT "A"

PORTION OF LOT 6, LOT 7, BLOCK 2, AMERICAS ESTATES UNIT ONE, A SUBDIVISION IN EL PASO COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF RECORDED IN CLERK'S FILE NO. 20080012035, REAL PROPERTY RECORDS OF EL PASO COUNTY, TEXAS.

**FIELD NOTE DESCRIPTION** of being all of Lot 7 and a portion of Lot 6, Block 2, Americas Estates Unit One, El Paso County, Texas and being more particularly described by metes and bounds as follows:

**COMMENCING FOR REFERENCE** at a city monument located at the centerline of Rathmore Drive (52' R.O.W.) opposite of Lot 6, Block 2, **THENCE**, leaving said centerline and to the southerly right-of-way line of Rathmore Drive, South  $45^{\circ}20'12''$  West, a distance of 50.00 feet to a set iron rod located at the **POINT OF BEGINNING** of the herein described parcel;

**THENCE**, leaving said southerly right-of-way line, 44.48 feet along the arc of a curve to the left, whose radius is 50.00 feet, whose interior angle is  $50^{\circ}58'02''$ , whose chord bears South  $70^{\circ}08'49''$  East, a distance of 43.03 feet to a set iron rod for corner;

**THENCE**, leaving said southerly right-of-way line, South  $05^{\circ}37'50''$  East, a distance of 173.00 feet to a point;

**THENCE**, 161.83 feet along the arc of a curve to the left, whose radius is 1176.00 feet, whose interior angle is  $07^{\circ}53'04''$ , whose chord bears North  $42^{\circ}57'54''$  West, a distance of 161.70 feet to a point;

**THENCE**, North  $37^{\circ}37'40''$  East, a distance of 86.43 feet to the **POINT OF BEGINNING** of the herein described parcel and containing 9,812.27 square feet or 0.2253 acres of land more or less.